

HOUSE No. 3422

The Commonwealth of Massachusetts

PRESENTED BY:

Chynah Tyler

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a jail and prison construction moratorium.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Chynah Tyler</i>	<i>7th Suffolk</i>	<i>1/9/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/20/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/20/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/20/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>2/20/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/20/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>2/20/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/20/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/20/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/20/2025</i>

HOUSE No. 3422

By Representative Tyler of Boston, a petition (accompanied by bill, House, No. 3422) of Chynah Tyler and others relative to establishing a jail and prison construction moratorium. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1795 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a jail and prison construction moratorium.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to establish an immediate prison and jail moratorium, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public safety and health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 7C of the General Laws is hereby amended by adding the
2 following section:

3 Section 73. (a) For the purposes of this section, the term “correctional facility” shall have
4 the same meaning as provided in section 1 of chapter 125.

5 (b) Notwithstanding any general or special law to the contrary, a state agency or public
6 agency shall not:

(i) study, plan, design, acquire, lease, search for sites, or construct new correctional facilities or detention centers;

(ii) expand the capacity of an existing correctional facility or detention center beyond its current design or rated capacity;

(iii) convert any part of an existing or dormant correctional facility or detention center for the purpose of detention or incarceration, including to change or expand the populations incarcerated in that facility or center;

(iv) renovate an existing or dormant correctional facility or detention center beyond performing routine maintenance and improvements limited only to ensuring compliance with federal and state law including building, health, and fire codes; installing plumbing fixtures such as toilets, showers, sinks, doors, or locks; improving food service or health services or medical service

units; improving heating and cooling systems; removing restrictive housing units or other security infrastructure; improving spaces for programming and education; provided that such improvements shall not increase a facility's bed capacity and must result in improved living conditions for incarcerated people;

(v) repair an existing or dormant correctional facility or detention center for the purposes of expanding the facility or center, or increasing its bed capacity.

SECTION 2. (a) For purposes of this section, the term "county jail and regional lockup facility" shall mean a facility operated by a county sheriff that, as of the effective date of this act, is used for all of the following: (i) the detention of convicted offenders; (ii) as a jail, as that term

28 is described in section 4 of chapter 126 of the General Laws; and (iii) as a regional lockup
29 facility utilized by more than 1 municipal law enforcement agency for the detention of arrestees.

30 (b) Notwithstanding clause (iii) of subsection (b) of section 73 of chapter 7C of the
31 General Laws, in the event that a county jail and regional lockup facility is closed due to the
32 closure of a county jail, the county sheriff may transfer no more than 30 beds from the closed
33 facility to an existing county correctional facility, as that term is defined in section 1 of chapter
34 125 of the General Laws, within the same county.

35 SECTION 3. Section 73 of chapter 7C of the General Laws is hereby repealed.

36 SECTION 4. Section 2 of this act is hereby repealed.

37 SECTION 5. Sections 3 and 4 shall take effect 5 years after the effective date of this act.